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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50, inclusive

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE: ADVERSE AUTHORITY
(JKC3H8; CCP § 425.16(f); CRPC
3.3(a)(2))**

**HEARING
MFL-SAC**

Date: Apr. 30, 2026
Time: as set by the Court.
Dept.: 302
Judge: Hon. Joseph M. Quinn

RELATED HEARINGS

Anti-SLAPP: May 13, 2026
Demurrer: May 13, 2026
MTS (CCP § 436, FAC): May 19,
2026

FILING DATES

Complaint: Dec. 23, 2025
FAC: Feb. 25, 2026
Related: CGC-21-594102

1 **Purpose and scope of this Notice.** This Notice is targeted to **quoted affirmative misstatements**
2 **of law** - principally the Opposition's "no such authority exists" framing - that are contradicted by
3 directly controlling published California authority (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468,
4 471–472, 477–478). It is **not** a contention that ordinary omission of secondary or supporting cases,
5 standing alone, supplies a basis for any dispositive ruling, and it does **not** ask the Court to deny any
6 motion - or grant leave - on the ground that a TOA is incomplete. Adverse-authority and CRPC
7 3.3(a)(2) notice practice is directed to **record and argument integrity**. The **ordinary remedy**
8 for a failure to disclose directly adverse controlling authority is the Court **rejecting the omitting**
9 **argument** on its merits, not refusing to hear the motion. The decision whether to grant leave to
10 amend remains **discretionary**, made on the substantive amendment record and the liberality policy
11 of CCP §§ 473(a)(1) and 576, with defendants' renewed special-motion right preserved by CCP
12 § 425.16(f). The substantive leave-to-amend showing - particularized facts, fraud-particularity
13 cure under Lazar v. Superior Court (1996) 12 Cal.4th 631, 638, 645, and viability under Zhang
14 v. Superior Court (2013) 57 Cal.4th 364 - is developed in plaintiff's MFL-SAC papers and the
15 companion combined packet; this Notice is supplemental to, not a substitute for, that substantive
16 showing.

17 **1. AUTHORITY NOT DISCLOSED IN OPPOSITION (TOA / BODY)**

18 Defendants' April 23, 2026 Opposition does not cite JKC3H8 v. Colton (2013) 221 Cal.App.4th
19 468, 471–472, 477–478, in the body or in its Table of Authorities. JKC3H8 is a published Califor-
20 nia Court of Appeal opinion squarely addressing the leave-to-amend / § 425.16 intersection and is
21 directly adverse to the Opposition's "no such authority exists" framing.

22 **2. THE NARROW PROPOSITIONS PLAINTIFF DRAWS FROM *JKC3H8***

23 The Court of Appeal held that where a plaintiff files an amended complaint removing protected-
24 conduct allegations as a basis for liability, a later-filed anti-SLAPP motion directed at the orig-
25 inal complaint may be rendered moot (JKC3H8, 221 Cal.App.4th at pp. 471–472). The opin-
26 ion expressly limits amendments offered **in response to the motion** to subvert or avoid a ruling
27 on an anti-SLAPP motion (id. at pp. 477–478). California's sequencing answer includes **CCP**
28 **§ 425.16(f)** (renewed motion) read with noticed leave under §§ 473(a)(1) and 576.

3. PLAINTIFF ACCEPTS THE ANTI-SUBVERSION BASELINE

Plaintiff accepts Simmons / Colton / Ellis / Contreras and is not seeking amendment as of right. Plaintiff proceeds by noticed §§ 473(a)(1) / 576 leave to perfect - not to subvert.

4. ADDITIONAL OMITTED ANTI-SLAPP AUTHORITIES

The Opposition omits several additional authorities that are directly adverse to the positions taken:

(A) CCP § 425.16(F) - THE STATUTORY SEQUENCING ANSWER

Defendants assert that plaintiff's motion for leave is "barred as a matter of law" and that it is "abundantly clear . . . [plaintiff's claims] cannot be amended." (802-Opposition, p. 5, 7.) Code of Civil Procedure section 425.16(f) provides that "[t]he special motion may be filed within 60 days of the service of the amended complaint": the statute expressly preserves the renewed-motion right after any superseding pleading. The Opposition's categorical framing fails to acknowledge the statutory sequencing answer.

(B) *BARAL V. SCHNITT* (2016) 1 CAL.5TH 376, 393–396

The Opposition asserts that "the entirety of the purported legal theories . . . focus inextricably on . . . protected litigation conduct." (802-Opposition, p. 5.) Baral requires surgical targeting of **specific allegations** arising from protected activity - not wholesale labeling of "the entirety" of a pleading. The Court held that "allegations of protected activity that are merely incidental to an unprotected claim" do not trigger anti-SLAPP analysis. Baral, supra, 1 Cal.5th at p. 394.

(C) *PARK V. BOARD OF TRUSTEES* (2017) 2 CAL.5TH 1057, 1062–1063

The Opposition asserts that "Plaintiff's allegations squarely target Defendant's litigation conduct." (802-Opposition, p. 4.) Park holds that step-one is a **gravamen** analysis: the court asks "what the defendant's activity is that gives rise to his or her asserted liability - and whether that activity constitutes protected speech or petitioning." Park, supra, 2 Cal.5th at p. 1063. Protected activity cited as **evidence** of an unprotected claim does not move the case to step two.

(D) *KIMMEL V. GOLAND* (1990) 51 CAL.3D 202, 211–212

The Opposition's gravamen framing ignores that Kimmel holds non-communicative **pre-litigation conduct** may fall outside the anti-SLAPP statute even when connected to later litigation. Where

1 plaintiff's primary theory is breach of the implied covenant arising from claims-handling **before**
2 any litigation privilege attached, the gravamen is not protected petitioning.

3 **(E) *FLATLEY V. MAURO* (2006) 39 CAL.4TH 299**

4 The Opposition does not address the Flatley illegality exception. Where protected activity is **illegal**
5 **as a matter of law**, the anti-SLAPP statute does not apply at step one. Flatley, supra, 39 Cal.4th
6 at p. 320.

7 **5. SUPPORTING AUTHORITY**

8 Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873 is also identified as supporting author-
9 ity on limited discretion to perfect a pleading after a merits showing.

10 **6. RESPECTFUL REQUEST**

11 Plaintiff respectfully requests that the Court take notice of these authorities and invite counsel to
12 address them at the noticed hearing. This Notice is not a motion for sanctions and does not restart
13 any safe-harbor period.

14 _____
15 **PROOF OF SERVICE**

16 [Attach CCP § 1013a-compliant proof of service naming each electronic and mail recipient for this
17 filing.]

Dated: April 28, 2026



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